



Food and Drugs (Milk) Act 1970

1970 CHAPTER 3

An Act to authorise the treatment of milk by the application of steam. [29th January 1970]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Treatment of
milk by
application
of steam.
1955 c. 16.

1.—(1) In section 32 of the Food and Drugs Act 1955 (which relates to the adulteration of milk in England and Wales) at the end there shall be added the following subsection:—

“(7) The treatment of milk by the application of steam shall not be treated for the purposes of this section as the making of an addition of water to that milk in contravention of the foregoing provisions of this section if—

- (a) Milk (Special Designation) Regulations under section 35 of this Act are in force prescribing a special designation in relation to milk submitted to that treatment; and
- (b) that treatment is carried out in accordance with the conditions prescribed by those regulations as the conditions subject to which licences authorising the use of that special designation are granted; and
- (c) those conditions include a condition that both the percentage of the milk consisting of milk fat and the percentage of the milk consisting of milk solids other than milk fat are the same after that treatment as before it.”

(2) In section 17 of the Food and Drugs (Scotland) Act 1956 1956 c. 30. (which makes for Scotland similar provision to the said section 32) at the end there shall be added the following subsection:—

“(4) The treatment of milk by the application of steam shall not be treated for the purposes of this section as the making of an addition of water to that milk in contravention of the foregoing provisions of this section if—

- (a) an order under section 3 of the Milk and Dairies 1922 c. 54. (Amendment) Act 1922 as enacted in section 10 of the Milk Act 1934 is in force prescribing a special 1934 c. 51. designation in relation to milk submitted to that treatment; and
- (b) that treatment is carried out in accordance with the conditions prescribed by that order as the conditions subject to which licences authorising the use of that special designation are granted; and
- (c) those conditions include a condition that both the percentage of the milk consisting of milk fat and the percentage of the milk consisting of milk solids other than milk fat are the same after that treatment as before it.”

2.—(1) This Act may be cited as the Food and Drugs (Milk) Act 1970. Short title
and extent.

(2) This Act does not extend to Northern Ireland.